

		CRC 3.1346 states that “A written notice and all moving papers supporting a motion to compel an answer to a deposition question or to compel production of a document or tangible thing from a nonparty deponent must be personally served on the nonparty deponent unless the nonparty deponent agrees to accept service by mail or electronic service at an address or electronic service address specified on the deposition record.” Here, there is no deposition record specifying an agreement to accept service by mail or electronic service. Accordingly, the motion must be served on the nonparty deponent personally. The proof of service attached to the motion shows it was served on non-party deponent by mail on 10/22/24, which is not sufficient. Accordingly, the motion is denied without prejudice. Moving party is ordered to give notice of this ruling.
2	30-2022-01252131 Mann vs. Knuppel	Before the court is the unopposed Motion for Attorney’s Fees and Costs Pursuant to Code of Civil Procedure § 473(b) filed by Defendants Neil W. Knuppel and Neil W. Knuppel, A Professional Law Corporation (collectively “Defendants”). The motion is GRANTED in part. A court granting mandatory relief pursuant to section 473(b) shall direct the attorney to pay “reasonable compensatory legal fees and costs to opposing counsel or parties.” (Code Civ. Proc., § 473(b) [emphasis added].) At hearing on the Motion to Vacate from 7/15/24, the court ruled: “The Knuppel Defendants request attorney fees in the amount of \$7,759.00 that were incurred “in dealing with the Motion to Confirm and opposing Plaintiff’s present motion to vacate.” (Newcomb Decl. ¶ 23.) The Knuppel Defendants’ counsel, however, did not provide a breakdown of their time. Consequently, the court cannot determine whether the requested fees are reasonable. Should they desire, the Knuppel Defendants’ may file a noticed motion for attorneys’ fees.” Defendants have filed the present motion seeking those fees, but now request fees and costs totaling \$15,201.04, broken down as \$12,978.50 in attorney’s fees and \$2,222.54 in costs, but still do not present a breakdown of hours. Based on counsel’s asserted rate of \$265/hour, the original requested

		amount reflected approximately 29.3 hours in fees. The court finds that both the rate and the original calculation of hours is reasonable, and thus awards \$7,759 in attorney's fees plus the asserted \$2,222.54 in costs associated with filings necessitated by Plaintiff's counsel's error. Accordingly, the court grants the motion, and awards a total of \$9,981.54 in reasonably compensatory fees and costs to Defendants against Plaintiff's counsel, Cliff Schneider. Moving party is ordered to give notice of this ruling.
3	30-2022-01271233 Farahmand vs. Farahmand	Continued to 4-28-25
4	30-2023-01335078 Phillips vs. Sullivan	Case Management Conference
5	30-2022-01290072 State Farm Mutual Automobile Insurance Company vs. Sullivan	The unopposed motion to consolidate actions filed by Defendant Gloria Sullivan ("Sullivan") is GRANTED. Sullivan moves for an order consolidating this action, <i>State Farm Mutual Automobile Insurance Company v. Gloria Jane Sullivan</i>, case no. 2022-01290072, with <i>Michael Phillips v. Gloria Jane Sullivan</i>, case no. 2023-01335078. Sullivan has now complied with the procedural requirements of California Rules of Court, rule 3.350. The Court has considered the record before it and the factors relevant to consolidation and has concluded that consolidation of these matters is warranted. (Code Civ. Proc., § 1048(a); Weil & Brown, Cal. Prac. Guide: Civ. Proc. Before Trial § 12:362.) Accordingly, the motion to consolidate is granted. The instant matter, case no. 2022-01290072, shall be designated the lead case. Counsel for Sullivan is ordered to give notice of this ruling to all parties.